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Rcpt: 31823 Rec: 19.50
DS: 0.00 IT: 0.00
10/09/95 _____ Dpty Clerk

JED PITTMAN, PASCO COUNTY CLERK
10/09/95 11:11am 1 of 4
OR BK 3483 PG 1112

Prepared by and return to:
Joseph D. Edwards, Esquire
Annis, Mitchell, Cockey, Edwards & Roehn, P.A.
P.O. Box 3433
Tampa, Florida 33601

DECLARATION OF CONSENT TO JURISDICTION OF COMMUNITY DEVELOPMENT DISTRICT AND TO IMPOSITION OF SPECIAL ASSESSMENTS

Trout Creek Development Corporation, a Delaware corporation (the "Landowner"), is the sole owner of the land described in Exhibit "A" attached hereto and made a part hereof, except for certain tracts and proposed rights-of-way owned by Pasco County and by the Meadow Pointe II Community Development District (the "District"). The land described in Exhibit "A" is located within the boundaries of the District. The undersigned, intending that it and its respective successors in interest shall be legally bound by this Declaration, hereby declares, acknowledges and agrees as follows::

1. The District is, and has been at all times on and after October 7, 1994, a legally created, duly organized, and validly existing community development district under the provisions of Florida Statutes, Chapter 190 (1993). The members of the Board of Supervisors of the District (the "Supervisors") and officers as constituted from October 10, 1994, to and including the date of this Declaration were duly elected to their respective positions in accordance with all requirements of Federal and Florida law including the Constitution of the United States of America and of the State of Florida and had the authority and right to authorize, approve, and undertake all actions of the District approved and undertaken from October 10, 1994 to and including the date of this Declaration.

2. The Landowner, its heirs, successors and assigns, hereby confirms and agrees that the special assessments imposed by Resolution 95-15 duly adopted by the Board of Supervisors of the District on August 11, 1995, and Resolution 95-16 duly adopted by the Board of Supervisors on September 25, 1995, including, without limiting the generality of the foregoing, required prepayments as established thereunder, are the valid, legal, binding obligations of the Landowner, its heirs, successors and assigns, and the Landowner, its heirs, successors and assigns, in consideration of the improvements

for which such assessments have been levied by the District, hereby covenant to pay such assessments, as and when due, but recourse against the Landowner for failure to pay the assessments shall be limited to enforcement of the assessments as provided by law. The Landowner acknowledges and agrees that it was present at the meetings of the Board of Supervisors of the District at its meetings on October 10, 1994, August 11, 1995, September 5, 1995, September 25, 1995, and October 2, 1995, that such October 2, 1995, meeting was a continuation to a date certain of a regularly scheduled and noticed meeting of such Board, and further that it waived and does hereby waive any further notice which could be asserted as being applicable under provisions of Florida law in connection with such meeting.

3. The Landowner, its heirs, successors and assigns, hereby waives the right granted in Chapter 170.09, Florida Statutes (1993), to prepay the special assessments within thirty (30) days after the improvements are completed without interest, in consideration of the District's undertaking to make the Improvements.

THE DECLARATIONS, ACKNOWLEDGEMENTS, AND AGREEMENTS CONTAINED HEREIN SHALL RUN WITH THE LAND DESCRIBED IN EXHIBIT "A" HERETO AND SHALL BE BINDING ON PROPERTIES AND ON ALL PERSONS (INCLUDING CORPORATIONS, ASSOCIATIONS, TRUSTS, AND OTHER LEGAL ENTITIES) TAKING TITLE TO ALL OR ANY PART OF THE LAND, AND THEIR SUCCESSORS IN INTEREST, WHETHER OR NOT THE LAND IS PLATTED AT SUCH TIME. BY TAKING SUCH TITLE SUCH PERSONS SHALL BE DEEMED TO HAVE CONSENTED AND AGREED TO THE PROVISIONS OF THIS DECLARATION TO THE SAME EXTENT AS IF THEY HAD EXECUTED IT AND BY TAKING SUCH TITLE SUCH PERSONS SHALL BE ESTOPPED FROM CONTESTING, IN COURT OR OTHERWISE, THE VALIDITY, LEGALITY, AND ENFORCEABILITY OF THIS DECLARATION OR OF ANY OF THE ORDINANCES, RESOLUTIONS, AGREEMENTS, DOCUMENTS, AND OTHER MATTERS DEALT WITH HEREIN.

Dated as of the 3rd day of October, 1995.

TROUT CREEK DEVELOPMENT CORPORATION, a Delaware corporation

By: _____
Stuart B. Aronoff, President

WITNESSES

_____

Mark K Staley

(Corporate Seal)

STATE OF FLORIDA
COUNTY OF HILLSBOROUGH

The foregoing instrument was acknowledged before me this 3 October, 1995, by Stuart B. Aronoff, President, of Trout Creek Development Corporation, a Delaware corporation, on behalf of the corporation. He is personally known to me ~~or produced as identification~~ and did not take an oath.

Notary Public
Print Name:
Commission No.:
My Commission Expires:

(AFFIX NOTARY SEAL)

LEGAL DESCRIPTION
MEADOW POINTE EAST 900

A tract of land lying within Section 32 and 33, Township 26 South, Range 20 East, Pasco County, Florida and being more particularly described as follows:

Commence at the Northwest corner of said Section 32; thence along the North line of said Section 32, S89°59'09"E, for 2418.34 feet to the POINT OF BEGINNING; thence continue along said line, S89°59'09"E, for 244.60 feet to the North 1/4 corner of said Section; thence continue along said line, S89°45'10"E, for 2647.56 feet to the Northwest corner of said Section 33; thence along the North line of said Section 33, S89°34'31"E, for 2685.23 feet to the North 1/4 corner of said Section; thence continue along said line, S89°57'09"E, for 2652.29 feet to the Northeast corner of said Section 33; thence along the East line of said Section 33, S00°11'36"W, for 2645.86 feet to the East 1/4 corner of said Section; thence continue along said line S00°14'24"W, for 1322.89 feet; thence leaving said East line, N89°48'56"W, for 1335.31 feet; thence N63°19'56"W, for 1487.03 feet; thence S45°37'00"W, for 946.13 feet; thence S00°27'03"W, for 1326.12 feet to the South line of said Section 33; thence along said South line, N89°52'26"W, for 2012.22 feet to the Southeast corner of said Section 32; thence along the South line of said Section 32, N89°50'36"W, for 1314.55 feet; thence leaving said South line, N23°00'00"W, for 4391.16 feet; thence N08°00'00"E, for 1280.82 feet; to the POINT OF BEGINNING and containing 822.27 acres, more or less.

PREPARED BY:
KING ENGINEERING ASSOCIATES, INC.